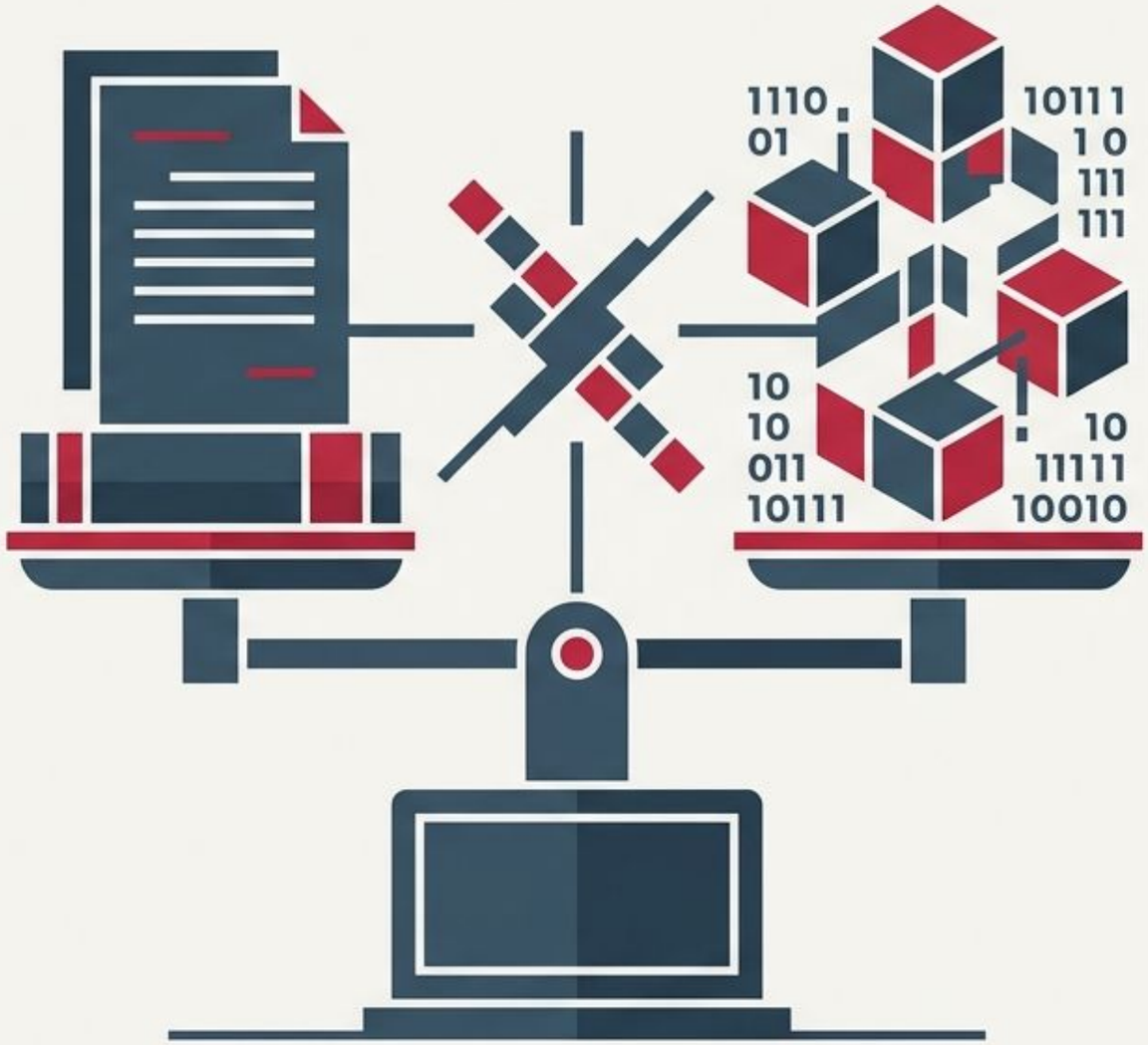
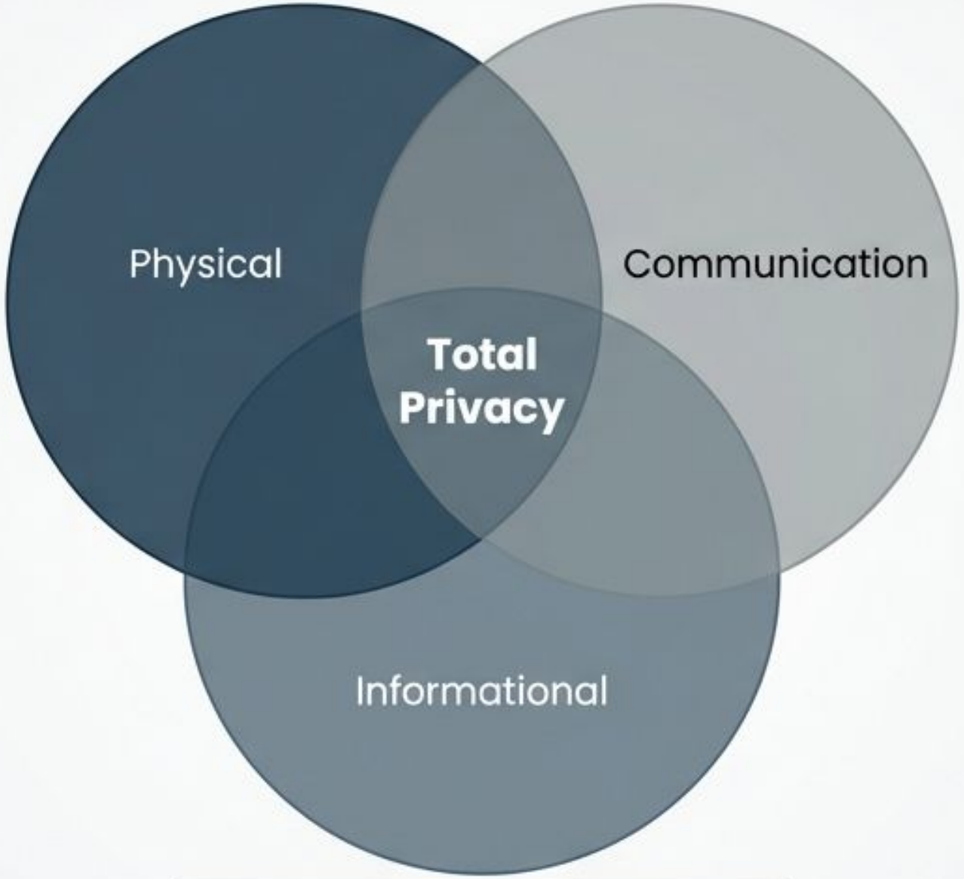
UNIT 3: PRIVACY & FREEDOM OF EXPRESSION

- Navigating the Digital Equilibrium
- Privacy Protection & Nepali Law
- Anonymity & Surveillance in the Digital Age
- First Amendment Rights vs. Platform Ethics



DEFINING THE BOUNDARIES OF PRIVACY

Information Privacy:
The fundamental right to control how personal data is collected, used, and stored by entities.



- **Physical:** Protection of the physical body and residence.
- **Communication:** Security of letters, emails, and telephone calls.
- **Informational:** Ultimate control over digital data, documents, and property details.

Constitutional Anchor: Article 28 of the Constitution of Nepal guarantees privacy as a fundamental human right.

THE LEGAL ARCHITECTURE (NEPAL)

Digital Rights

Privacy Act, 2075 (2018):
Primary legislation enforcing constitutional privacy rights.

Electronic Transaction Act (ETA), 2063:
Criminalizes digital data theft and unauthorized system access.

Muluki Criminal Code, 2074:
Governs physical breaches (e.g., trespassing, unauthorized tapping).

Consumer Protection Act, 2075:
Mandates transparency and security in digital transactions.

System Flaw: Fragmented laws create overlapping penalties and ambiguity between the Privacy Act and the Criminal Code.

PERSONAL VS. SENSITIVE DATA

Personal Identity

- **Identity:** Name, address, phone, email, official IDs.
- **Demographics:** Caste, ethnicity, religion, marital status.
- **Biometrics:** Fingerprints, retina scans, blood group.

Sensitive Data (Strict Rules)

- **Health** conditions & medical history.
- **Sexual** orientation.
- **Political** affiliation.
- **Property Details** (Unique to Nepal: classified as highly sensitive).

The Code Flaw: The legal framework relies on rigid lists, entirely ignoring modern digital identifiers like IP addresses, cookies, and location data.

DATA OBLIGATIONS & CONSEQUENCES

Lifecycle of Legal Data

Consent:
Explicit approval required before collection.

→

Collect:
Gathering strictly necessary data.

→

Secure:
Handlers must protect data; users can correct inaccuracies.

→

Use:
Purpose Limitation strictly locks data to original intent.

Legal Penalties & Ambiguities

- **Criminal Offence:** Breaches risk up to 3 years imprisonment OR NPR 30,000 fine (or both).
- **Legal Window:** Complaints must be filed at the District Court within 3 months of the violation.
- **Ambiguity:** The Act fails to define 'Data Controller' or 'Processor', obscuring final liability.

VULNERABILITIES: PRIVACY IN PRACTICE

Consumer Profiling

Algorithmic tracking for targeted ads; risks hidden manipulation, bias, and unauthorized behavioral assessment.

Workplace Monitoring

Employer tracking (keystrokes, CCTV); legally blurs the line between necessary security and unethical intrusion.

e-Discovery

Forced legal disclosure of digital records (emails, Slack), risking exposure of unrelated sensitive personal data.

State Surveillance

Government interception of communications; interventions must be legally authorized, transparent, and strictly proportional.

PRECEDENTS: THE COURTS PUSH BACK

Case Brief
Supreme Court Precedent 1
NKP 2074 (Decision 9740)

- The state cannot arbitrarily access personal communications (e.g., call details).
- Warrants and legal authority are absolutely mandatory, even in criminal probes.

Case Brief
Supreme Court Precedent 2
NKP 2077 (Decision 1232)

- Revealing personal data without legal backing violates the right to dignity and enables discrimination.

The Media Exception:
Publishing data on public figures is permitted if it serves transparency and public interest. However, the Act fails to clearly define "public figure," inviting continuous litigation.

FREEDOM OF EXPRESSION & ITS LIMITS

The Constitutional Right:

- Article 17(2)(a) guarantees freedom of opinion and expression.
- Fully aligns with the Universal Declaration of Human Rights (Article 19).

Restriction Triggers & Risks:

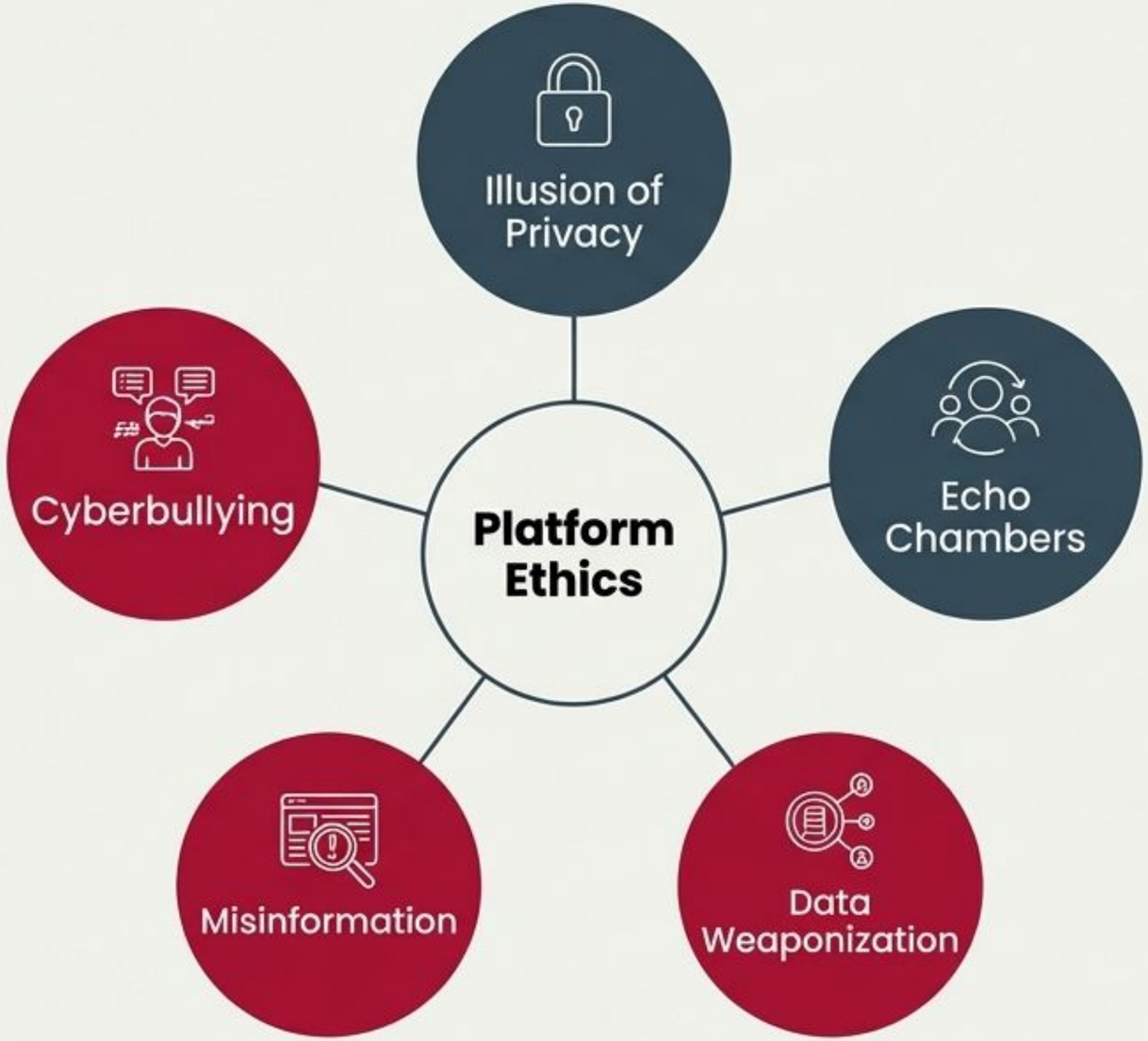
- Restrictions invoked for: National sovereignty, communal harmony, defamation, and public decency.
- The Risk Factor: Vague restriction criteria create a 'chilling effect,' forcing users into preemptive self-censorship.

SYSTEM CRASH: THE 2025 SOCIAL MEDIA BAN

Event/Proposal	Key Provisions/Action	Implication for Freedom of Expression	Outcome
2023 Directive	Mandates platform registration & local grievance officers.	Sets regulatory framework.	Leads to compliance demands.
Sept 2025 Ban	26 platforms (YouTube, Meta, WhatsApp) blocked for non-compliance.	Unprecedented restriction on communication.	Triggers violent Gen Z protests.
The Social Media Bill	Proposed 5 years prison / NPR 10M fine for 'false information'.	Vague definitions risk severe chilling effect.	Political crisis; Ban lifted and Bill withdrawn in Feb 2026.

SOCIAL NETWORKING: ETHICAL DILEMMAS

- **Illusion of Privacy:** Public sharing is routinely weaponized by employers and third parties.
- **Cyberbullying:** Anonymity emboldens harassment. (In 2023, INSEC reported 88 girls and 131 women as victims of social media crimes in Nepal).
- **Echo Chambers:** Algorithms prioritize engagement, reinforcing bias and polarizing user bases.
- **Misinformation:** Rapid sharing mechanics transform networks into powerful vectors for fake news.
- **Data Weaponization:** Deep data mining allows for political micro-targeting and behavioral manipulation.



SYNTHESIS: THE DIGITAL DIVIDE

The Paradox:
Technology grants unprecedented power for expression, yet enables inescapable surveillance.

Anonymity's Dual Edge:
It shields whistleblowers from oppressive regimes, but protects trolls from accountability.

The Digital Divide:
Without digital literacy and equal access, vulnerable populations face exponentially greater online harms.

The Designer's Role:
Multimedia professionals must architect platforms that actively balance UX, legal compliance, and fundamental human rights.